its present regulation and historical laws addressing habitual drunkards. Those laws, the government contends, demonstrate a tradition of firearm regulation consistent with its effort to disarm any regular user of any controlled substance without any further showing. But the government's analogy fails under every measure it asks us to consider: The historical laws on which it relies targeted different kinds of people, did so for different reasons, and operated in different ways. And faced with all these shortcomings in the government's submission, we cannot say it has carried its conceded burden of showing its prosecution of Mr. Hemani complies with the Second Amendment.

The judgment of the Fifth Circuit is affirmed.

It is so ordered.

JUSTICE THOMAS, concurring.

I agree with the Court that § 922(g)(3) violates the Second Amendment as applied to respondent Ali Hemani, and I join its opinion in full. I write separately to call attention to another issue: As a matter of both original meaning and this Court's precedents, § 922(g)(3) appears to exceed Congress's enumerated power to regulate interstate commerce. The statute makes it a federal crime for unlawful drug users to possess any firearm or ammunition "in or affecting commerce." 18 U. S. C. § 922(g)(3). Under the prevailing interpretation of § 922(g)(3), the Government can secure a conviction for unlawful firearm possession "if the firearm possessed" by the drug user "had previously traveled in interstate commerce." *United States* v. *Rawls*, 85 F. 3d 240, 242 (CA5 1996) (*per curiam*). The Commerce Clause does not authorize Congress to "regulate or ban possession of any item that has ever been offered for sale or crossed state lines." *Alderman* v. *United States*, 562 U. S. 1163, 1167 (2011) (THOMAS, J., dissenting from denial of certiorari). Such an understanding would "convert congressional authority under the Commerce Clause to a general police power of

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the sort retained by the States." *United States* v. *Lopez*, 514 U. S. 549, 567 (1995). So, while the issue was not presented in this case, the Court, and lower courts, should revisit the constitutionality of § 922(g).

I

Section 922(g) criminalizes intrastate gun possession. It makes it a felony for enumerated categories of people to, as relevant here, "possess in or affecting commerce, any firearm or ammunition." § 922(g). In *Scarborough* v. *United States*, 431 U. S. 563 (1977), this Court held that materially identical language required—as a matter of statutory interpretation—only that "the possessed firearm previously traveled in interstate commerce." *Id.*, at 564, 578. The courts of appeals have interpreted § 922(g)'s "in or affecting commerce" element to likewise require only that same "minimal nexus" to interstate commerce. *Rawls*, 85 F. 3d, at 242–243 (citing *Scarborough*, 431 U. S., at 575). In Hemani's indictment, for example, the Government alleged only that the firearm that he possessed had "been shipped and transported in interstate and foreign commerce" in the past—even though Hemani was indicted for possessing it in his home in Texas. See No. 4:23–cr–00018 (ED Tex.), ECF Doc. 1, p. 1; *ante*, at 778–779. The Government did not have to allege, nor would it have had to prove at trial, that Hemani bought the firearm from someone in another State or even carried it across state lines himself at any point. See, *e. g.*, *United States* v. *Ervin*, 131 F. 4th 253, 256, 260 (CA4 2025) (upholding conviction of a North Carolina defendant for unlawfully possessing a firearm manufactured in North Carolina because someone else brought it to another State and back to North Carolina).

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II

Section 922(g) appears to exceed Congress's powers under the Commerce Clause. Congress has the power to "regulate

Commerce . . . among the several States." U. S. Const., Art. I, § 8, cl. 3. As a matter of both original meaning and this Court's precedents, Congress lacks the power to regulate the possession of firearms solely on the ground that they crossed state lines at some point in the past.

A

As an original matter, the Commerce Clause authorizes Congress only "to regulate the buying and selling of goods and services trafficked across state lines." *Gonzales* v. *Raich*, 545 U. S. 1, 58 (2005) (THOMAS, J., dissenting). It gives Congress no power to regulate "activities wholly separated from business, such as gun possession." *Lopez*, 514 U. S., at 599 (THOMAS, J., concurring). "[T]he power to regulate 'commerce' can by no means encompass authority over mere gun possession, any more than it empowers the Federal Government to regulate marriage, littering, or cruelty to animals, throughout the 50 States." *Id.*, at 585.

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Because § 922(g) criminalizes possession of firearms apart from any purchase or sale of goods and services across state lines, I doubt that it could be an exercise of Congress's Commerce Clause powers as an original matter.

B

Section 922(g), it seems, also "cannot be reconciled" with this Court's modern Commerce Clause doctrine. *Alderman*, 562 U. S., at 1166 (opinion of THOMAS, J.). Under that doctrine, § 922(g) must fall within one of three categories to be constitutional: It must either regulate "the use of the channels of interstate commerce," "regulate and protect the instrumentalities of interstate commerce, or persons or things in interstate commerce," or regulate "activities that substantially affect interstate commerce." *Lopez*, 514 U. S., at 558–559.

Section 922(g) does not seem to fall within either of the first two categories. It does not, as far as I can tell, regulate

the "use of the channels of interstate commerce" because it criminalizes possession of a firearm within a State long after any use of those channels. Nor does it "regulate and protect the instrumentalities of interstate commerce, or persons or things in interstate commerce" because it requires no showing that the possession in question poses any risk to interstate buying, selling, shipping, or transportation.

I also doubt that § 922(g) can fall within the third and broadest category for regulations of "activities that substantially affect interstate commerce." *Id.*, at 559. The mere possession of a firearm that long ago crossed state lines is not "economic activity" in any sense, and the Court has never upheld regulation of intrastate activity that is not "economic in nature" under this category. *United States* v. *Morrison*, 529 U. S. 598, 613 (2000). Moreover, our precedents suggest that merely possessing a gun does not have a "substantial effect" on interstate commerce. Section 922(g) targets classes of people that the Government thinks "threaten the safety of the community" if they have weapons. Brief for United States 10. But, the Court has emphatically rejected "the argument that Congress may regulate noneconomic, violent criminal conduct based solely on that conduct's aggregate effect on interstate commerce." *Morrison*, 529 U. S., at 617. Accordingly, in *Lopez*, the Court concluded that "possession of a gun in a local school zone is in no sense an economic activity that might, through repetition elsewhere, substantially affect any sort of interstate commerce." 514 U. S., at 567. Like the gun-possession statute at issue in *Lopez*, § 922(g) is not a regulation of economic activity, but a law to combat "crime and violence," even at the local level. Gun Control Act of 1968, Pub. L. 90–618, § 101, 82 Stat. 1213.*

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**Gonzales* v. *Raich*, 545 U. S. 1 (2005), cannot save § 922(g), either. That decision recognized a further category of a law forming an "essential par[t] of a larger regulation of economic activity." *Id.*, at 24 (internal quotation marks omitted). Section 922(g) is not an effort to "regulate purely intrastate activity" on the basis that "failure to regulate that class

For these reasons, lower court judges have for decades concluded that under this Court's precedents, § 922(g) exceeds Congress's power to regulate interstate commerce. See, *e. g.*, *United States* v. *Chesney*, 86 F. 3d 564, 574–575 (CA6 1996) (Batchelder, J., concurring); *United States* v. *Kuban*, 94 F. 3d 971, 977 (CA5 1996) (DeMoss, J., dissenting in part); *United States* v. *Storey*, 571 F. Supp. 3d 1296, 1298 (MD Fla. 2021) (Mizelle, J.); *United States* v. *Seekins*, 52 F. 4th 988, 991 (CA5 2022) (Ho, J., dissenting from denial of rehearing en banc); *United States* v. *Bonner*, 159 F. 4th 338, 343 (CA5 2025) (Willett, J., concurring); see also *United States* v. *Patton*, 451 F. 3d 615, 634 (CA10 2006) (McConnell, J.) (regarding an analogous restriction on possessing body armor); *United States* v. *Alderman*, 565 F. 3d 641, 648 (CA9 2009) (Paez, J., dissenting) (same); *United States* v. *Alderman*, 593 F. 3d 1141 (CA9 2010) (O'Scannlain, J., dissenting from denial of rehearing en banc) (same).

C

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In upholding § 922(g) under the Commerce Clause, the courts of appeals have misapprehended our precedents in two ways. Some have thought that *Scarborough*'s statutory holding required them to uphold § 922(g)'s constitutionality. Others have concluded that the presence of a so-called "jurisdictional hook" in § 922(g) renders the statute constitutional under *Lopez* and *Morrison*. Neither rationale establishes that § 922(g) is constitutional.

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of activity would undercut the regulation of the interstate market in that commodity." *Id.*, at 18. Preventing gun "possession by certain categories of dangerous persons" does not bear any rational relationship to the interstate market for guns, drugs, or anything else, nor does it purport to do so. Brief for United States 5 (describing the purpose of § 922(g)). Section 922(g) is what the Government has always said it is: a regulation to further "public safety" by preventing local gun crime. See Gun Control Act, Pub. L. 90–618, § 101, 82 Stat. 1213 (stating that its purpose is to "provide support to Federal, State, and local law enforcement officials in their fight against crime and violence"); accord, Brief for United States 32; Brief for Firearms Policy Coalition as *Amicus Curiae* 12.

Several courts have upheld § 922(g) based on this Court's decision in *Scarborough* alone. They have understood *Scarborough*'s interpretation of the statutory "in" or "affecting commerce" requirement to establish, as a matter of Supreme Court precedent, that § 922(g) is a valid exercise of Congress's Commerce Clause powers in all its applications. Some have even suggested that they would otherwise find § 922(g) unconstitutional. See, *e. g.*, *Rawls*, 85 F. 3d, at 243 (Garwood, J., concurring) (writing for the full panel and explaining that *Scarborough* "bind[s]" the court to uphold § 922(g)'s constitutionality even though "one might well wonder how it could rationally be concluded that mere possession of a firearm in any meaningful way concerns interstate commerce"); *United States* v. *Gateward*, 84 F. 3d 670, 671 (CA3 1996) (upholding the statute on the ground that *Lopez* did not abrogate *Scarborough*); *Patton*, 451 F. 3d, at 636 ("[W]e see considerable tension between *Scarborough*" and later decisions, but "we are bound by *Scarborough*").

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Those courts misread *Scarborough*. The Court has never held that § 922(g) is constitutional whenever the *Scarborough* test is satisfied. See *Alderman*, 562 U. S., at 1168 (opinion of THOMAS, J.). *Scarborough*'s holding "was statutory, not constitutional." *Seekins*, 52 F. 4th, at 991 (opinion of Ho, J.); accord, *Bonner*, 159 F. 4th, at 342 (Willett, J., concurring); Brief for Firearms Policy Coalition as *Amicus Curiae* 13–14. *Scarborough* addressed only whether "Congress intended no more than a minimal nexus requirement" in its statutory requirement that the firearm in question was received, possessed, or transported "in commerce or affecting commerce." 431 U. S., at 564, 577 (internal quotation marks omitted). It based its holding on the statute's "language" and "legislative history," not constitutional law. *Id.*, at 575. *Scarborough* cannot be taken, by this Court or the courts of appeals, as purporting to settle the question of § 922(g)'s constitutionality. See *United States* v. *L. A. Tucker Truck Lines, Inc.*, 344 U. S. 33, 38 (1952) (explaining that holdings of this Court

cannot be gleaned from issues not "discussed in the opinion of the Court").

Other courts have upheld § 922(g)'s constitutionality solely on the ground that it has a "jurisdictional hook" purporting to connect the offense to interstate commerce. *E. g.*, *United States* v. *McAllister*, 77 F. 3d 387, 389–390 (CA11 1996); *United States* v. *Dorris*, 236 F. 3d 582, 585–586 (CA10 2000); *United States* v. *Lemons*, 302 F. 3d 769, 772 (CA7 2002); *United States* v. *Smith*, 101 F. 3d 202, 215 (CA1 1996); *United States* v. *Hanna*, 55 F. 3d 1456, 1462, n. 2 (CA9 1995); *United States* v. *Singletary*, 268 F. 3d 196, 204 (CA3 2001). Under *Scarborough*, § 922(g) requires that the firearm at some point traveled across state lines. This jurisdictional element, these courts say, itself shows a sufficient "nexus with interstate commerce." *United States* v. *Bell*, 70 F. 3d 495, 498 (CA7 1995); accord, *e. g.*, *Rawls*, 85 F. 3d, at 242–243; *United States* v. *Bolton*, 68 F. 3d 396, 400 (CA10 1995). And, on this view, the "jurisdictional element" in § 922(g) "distinguishes it from the statutes considered in *Lopez* and *Morrison*," which lacked such a hook. *Singletary*, 268 F. 3d, at 204.

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This justification, too, appears to conflict with our precedents. Congress cannot regulate the possession of every thing that ever traveled across state lines. *Alderman*, 562 U. S., at 1167 (opinion of THOMAS, J.). As a statutory matter, Congress required no more. But, treating Congress's "jurisdictional element" as dispositive "could very well remove any limit on the commerce power" and "would trespass on traditional state police powers." *Ibid.* It would also render meaningless this Court's decisions requiring that exercises of the commerce power fit within defined categories. *Morrison*, 529 U. S., at 608–609.

Nothing in *Lopez* or *Morrison* suggests anything to the contrary. *Lopez* considered a jurisdictional hook helpful only if it "would ensure, through case-by-case inquiry, that the firearm possession in question affects interstate commerce." 514 U. S., at 561. But, as explained, § 922(g)'s bare

requirement that the firearm previously traveled across state lines does not ensure that the firearm possession in question affects interstate commerce: Mere possession of a firearm does not necessarily affect commerce at all. *Morrison* also said that a jurisdictional hook could help show that the statute "is in pursuance of Congress' power to regulate interstate commerce." 529 U. S., at 613. But, the fact that § 922(g) purports to be an exercise of Congress's Commerce Clause powers does not mean that it falls within the legitimate scope of those powers.

III

Under our Constitution, "[t]he powers of the legislature are defined, and limited; and that those limits may not be mistaken, or forgotten, the constitution is written." *Marbury* v. *Madison*, 1 Cranch 137, 176 (1803). It has now been 26 years since a party has received relief in this Court based on a Commerce Clause challenge. Such relief has also been hard to come by in the lower courts, as the decisions concerning § 922(g) show. This question merits a closer look in an appropriate case. For, like Judge Batchelder, "I . . . am unprepared to reduce the Supreme Court's *Lopez* decision to an anachronism to be noted in passing but ignored. Congress's enumerated powers, like Supreme Court opinions setting forth their limits, are, in my view, to be taken seriously." *Chesney*, 86 F. 3d, at 580 (concurring opinion).

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JUSTICE JACKSON, with whom JUSTICE SOTOMAYOR joins, concurring.

I join the Court's opinion in full because it correctly applies our decisions in *New York State Rifle & Pistol Assn., Inc.* v. *Bruen*, 597 U. S. 1 (2022), and *United States* v. *Rahimi*, 602 U. S. 680 (2024). But I continue to believe that we veered off course in *Bruen*. See *Rahimi*, 602 U. S., at 741 (concurring opinion). I write separately to emphasize that means-end scrutiny—the approach courts applied before we